

25PR00462 Estate of Donald William Morgan

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-28

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Donald William Morgan

Case Number

25PR00462

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/28/2026 - 09:00

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Assignment by Tabitha Morgan grossly unreasonable. The proposed distribution does not comply with the intestate distribution scheme in the Probate Code. When a decedent's estate does not pass by a testamentary instrument (by failure of transfer, or omission, etc.), that property passes to the decedent's heirs as prescribed in Division 6, part 2 of the Probate Code (§§6401, et seq.). (Prob. Code, § 6400.)

Tabitha Morgan alleges in supplement that she is assigning 66.6% of her estate to family members for no reason other than charity. This is a gift, not an assignment, and does not justify or warrant the Court to deviate from the intestate scheme in the Probate Code. Ms. Morgan is free to give her inheritance away to anyone she pleases after the Court orders distribution to her in accordance with the law of California.

Therefore, the Court should find the assignments grossly unreasonable pursuant to Probate Code section 11604, and order 50% of the estate distributed to Tabitha Morgan so the proposed distribution does not depart from the law of intestacy.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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